

HOUSE BILL 41

By Howell

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to communication devices at schools.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 2, Part 1, is amended by adding the following as a new section:

(a) As used in this section, "wireless communication device" means a portable wireless device that has the capability to provide voice, messaging, or other data communication between two (2) or more parties, including, but not limited to:

- (1) Cellular telephones;
- (2) Tablet computers;
- (3) Laptop computers; and
- (4) Gaming devices.

(b) Each local board of education and public charter school governing body shall adopt and implement a wireless communication device policy that:

(1) Except as provided in subdivisions (b)(2)-(4), requires a student:

(A) In any of the grades kindergarten through eight (K-8) who possesses a wireless communication device to keep the wireless communication device turned off and stowed away during a classroom instructional day; and

(B) In any of the grades nine through twelve (9-12) who possesses a wireless communication device to keep the wireless

communication device turned off and stowed away during instructional time;

(2) Authorizes a teacher to permit a student to use a wireless communication device for educational purposes during instructional time;

(3) Permits a student to use a wireless communication device to monitor the student's health concern as prescribed by the student's healthcare provider;

(4) Permits a student to use a wireless communication device during a classroom instructional day or instructional time if the student's use of the wireless communication device is included in the student's:

(A) Individualized education program under the Individuals with Disabilities Education Act (20 U.S.C. § 1400 et seq.); or

(B) Active 504 plan developed under Section 504 of the Rehabilitation Act of 1973 (29 U.S.C. § 794); and

(5) Establishes a process by which parents of students will be contacted in the event of an emergency or possible emergency at the school in which the parent's student is enrolled.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it, and applies to the 2025-2026 school year and each school year thereafter.